

BEFORE THE
FEDERAL MARITIME COMMISSION

THEE

DOCKET NO. 25-24

Southern International Co., LTD

Complainant,

v.

Daynamez Group of Companies LLC

Respondent.

**RESPONDENT'S MOTION TO DISMISS
THE FORMAL AMENDED COMPLAINT**

Comes Now the Respondent, Daynamez Group of Companies LLC (hereinafter referred to as Daynamez) and responds to the Amended Complaint by Southern International Co., Ltd (hereinafter referred to as SIC) by filing its Motion to Dismiss the Formal Amended Complaint and would state the following:

Introduction

1. A Complaint was served with the Federal Maritime Commission on August 26, 2025.
2. The Complaint that was originally filed was found to be deficient as it does not follow a cohesive format with specific allegations in numbered paragraphs and did not state a claim whereby there was jurisdiction by the Federal Maritime Commission as well as a deficient verification. Although

SIC was allowed to Amend its Complaint, there are still inadequate allegations to show that there is jurisdiction over this case under the Shipping Act. The Court had stated that the original allegations in addition to not being filed in the proper format did not find the allegations sufficient on the merits but gave the Complainant an opportunity to Amend its Complaint.

3. SIC has still not alleged sufficient facts to confer jurisdiction by the Federal Maritime Commission. There are just bold faced allegations made stating that Daynamez is an NVOCC.
4. The Federal Maritime Commission has no jurisdiction as the Respondent was not acting as a Non-Vessel Operating Common ("NVOCC"), Ocean Freight Forwarder, or Common Carrier.
5. The basis of this claim is that the Respondent was acting as a NVOCC.

The first problem with this assertion is that the Respondent is not a licensed NVOCC. SIC however, claims to be an OTI in paragraph 4 of its Amended Formal Complaint. If SIC is an OTI as alleged which includes being an NVOCC, then why would the Respondent be a NVOCC on these shipments? How many NVOCCs are there on this matter? The shipments at issue are inbound to the United States and the Complainant is based in Vietnam. The Complaint states that there is jurisdiction under 46 U.S.C.A. § 41301 which only states where Complaints are to be filed related to the Shipping Act as does 46 C.F.R. § 502.61(c). There is nothing in the Complaint giving an FMC license number in order to make a credible

assertion that Daynamez was a NVOCC. Super Cargo Service Co., Ltd. ("Super Cargo Vietnam") and Kargosmart Global Vietnam Co., Ltd. ("Kargosmart Vietnam").were the ones according to the Formal Amended Complaint who issued bills of Lading and did bookings, not the Respondent. See Paragraph 17 of the Formal Amended Complaint.

6. As noted by the Court, the initial complaint, did not state a cause of action as to why there would be jurisdiction. The Amended Formal Complaint has the same allegations as in the initial complaint which are broken down into shorter paragraphs. There are no new allegations in the Amended Formal Complaint, although the agency agreement, which is an Exhibit to the original Verified Complaint is conspicuously missing from the Amended Formal Complaint. Nowhere in the agreement between SIC and Daynamez does it state that Daynamez is an NVOCC. It is labeled an agency agreement and discusses both parties receiving money on prepaid shipments. The case should be dismissed due to a lack of jurisdiction. There are inadequate allegations once again.
7. It is further pointed out that the new Complaint at paragraphs 14 to 17 discusses how there were forwarders and other parties downstream that were involved in the transportation. The Respondent is obviously not a NVOCC with regard to this shipment. In fact, the shipments originated in Vietnam, so why would the Respondent be the NVOCC? There are no bills of lading with the name of the Respondent on them.
8. The FMC and federal courts have made it clear that jurisdiction under the Shipping Act is functional, not merely nominal or descriptive. In *Landstar*

Express America Inc. v. FMC, 569 F.3d 493 (D.C. Cir. 2009), the court ruled that even entities performing related shipping functions, such as agents of NVOCCs, are not subject to the Act.

9. The Respondent would also once again direct the Court to the case of *A Customs Brokerage, Inc. v. Cargocare Logistics Usa, Inc. and Cargocare Logistics America, Inc.*, which was a case involving a Customs Broker in a proceeding in front of the Federal Maritime Commission under the Shipping Act of 1984. The Federal Maritime Commission ruled that customs duties were not included within the jurisdiction of the Federal Maritime Commission. Likewise, the Respondent did not do anything that would subject itself to the jurisdiction of the Federal Maritime Commission.
10. At paragraph 17, the Complaint specifically states, “While Respondent claimed these entities were agents, the actual issuance of bookings and Bills of Lading was carried out by Vietnamese agents: Super Cargo Service Co., Ltd. ("Super Cargo Vietnam") and Kargosmart Global Vietnam Co., Ltd. ("Kargosmart Vietnam"). So how can the Respondent be a NVOCC? It is respectfully pointed out that the Complainant is a Vietnamese company as well and was aware of the functions of these 2 companies. Furthermore, the Complainant claiming to be an OTI would be aware of the Respondent not being an OTI. Why would the Respondent, a Virginia Company, be the NVOCC when there are 2 companies alleged by the Complainant to be

doing the booking and the bills of lading and are in the country of
OCC based out of Vietnam.

11. The Respondent would ask that the Court look at the agreement between the parties, which is an agency agreement. As previously mentioned, the agency agreement was attached to the initial complaint but not the amended complaint. The agreement does not state that either party is a NVOCC or an Ocean Freight Forwarder. The terms of the agreement can obviously be considered by the Court in this Motion to Dismiss to the extent necessary. The dispute is simply a case regarding a dispute between 2 parties who have a dispute over money. There is no jurisdiction over the Respondent. This is a matter that should be litigated in a court if SIC feels that there was a breach of contract. SIC does have other options to pursue this matter.
12. It should be noted that there is nothing on the record to show that Daynamez issued a bill of lading or did a consolidation of the cargo.
13. NVOCCs and Ocean Freight Forwarders that are licensed by the Federal Maritime Commission typically route cargo from the United States to other countries. In fact, the cargo was booked coming to the United States by two companies based in Vietnam as per paragraph 17 of the Amended Formal Complaint.
14. The statutory definition of an Ocean Freight Forwarder requires both booking space and processing documentation under 46 U.S.C. § 40102. There is nothing to show that the Respondent had anything to do with documentation and the Complaint states that other parties booked the

cargo. The Act states **(17) Non-vessel-operating common carrier.**--The term “non-vessel-operating common carrier” means a common carrier that--**(A)** does not operate the vessels by which the ocean transportation is provided; and **(B)** is a shipper in its relationship with an ocean common carrier. The Respondent is an American Limited Liability Company and there is nothing to show that it appears on any bills of lading as a shipper. It does not meet the definition nor is it a licensed NVOCC or an Ocean Freight Forwarder. There are no allegations that the Respondent is a consolidator or an Ocean Freight Forwarder.

15. See also *AEI Asia Express (H.K.) Ltd. v. Am. Bankers Ins. Co. of Fla.*, 5 F.

App'x 106, 109 (4th Cir. 2001) which states:

“NVOCC is defined as “a common carrier that does not operate the vessels by which the ocean transportation is provided and is a *shipper in its relationship with an ocean common carrier.*” 46 App.U.S.C.A. § 1702(17) (emphasis added). Courts frequently describe NVOCCs as “intermediar [ies] between a shipper of goods and an operator of a vessel that carries the goods. *Axess Int'l, Ltd. v. Intercargo Ins. Co.*, 183 F.3d 935, 937 (9th Cir.1999). “

16. An ocean freight forwarder is **(19) Ocean freight forwarder.**--The term “ocean freight forwarder” means a person that--**(A)** in the United States, dispatches shipments from the United States via a common carrier and books or otherwise arranges space for those shipments on behalf of shippers; and **(B)** processes the documentation or performs related

activities incident to those shipments. 46 U.S.C.A. § 40102 (West).The shipments were from Vietnam to the United States. The Respondent was not acting as an ocean freight forwarder. The allegations of the Amended Complaint do not state that the Respondent processed documentation and does not allege that Daynamez is an Ocean Freight Forwarder.

17. The Complaint is still rambling and does not describe any activities that qualify as violations of the Shipping Act. The Complaint is just stating that the Respondent lined up agents and others. It does not say anything about the Respondent being a shipper on bills of lading and doing documentation or booking. The allegations about keeping money are more in the form of civil allegations about the allocation of money between two businesses, not about booking cargo with steamship companies or NVOCCs. This is something that should be litigated in a civil court rather than in front of the Federal Maritime Commission, it is the position of the Respondent that it is owed money.
18. The allegations about taking money have no substance and in fact complain about other parties putting a hold on cargo, not the Respondent. There is no proof of payment to Daynamez.
19. Although the court stated that a shipping contract does not supplant the Shipping Act, this is a civil dispute between two parties to a contract. The Complainant could pursue this matter in another forum.
20. The Complainant makes an incomprehensible argument that the Respondent said that it has contacts in Rotterdam at paragraph 10. What does this have to do with shipments from Vietnam to the United States?

21. The Complainant cites to 46 U.S.C. §40901 & §40902: Unlicensed NVOCC operations are prohibited. There were no unlicensed activities by the Respondent as it never acted as a NVOCC. This cargo was inbound cargo, not outbound cargo and Paragraph 17 of the Amended Formal Complaint states that other parties booked the cargo and prepared the bills of lading.
22. The alleged violations under 46 U.S.C. 41102 (c) references agreements and practices of OTI s and others which is not relevant to this situation.
23. The only relevant agreement is missing from the Amended Formal Complaint, which is the agreement between the parties and was not filed by SIC with the Federal Maritime Commission even though it claims to be an OTI which includes being an NVOCC. The accusation of a lack of filing would not be the responsibility of the Respondent under 46 U.S.C. 41102(b) when SIC claims to be an NVOCC.
24. Section 46 U.S.C. 41102 (a) does not apply to this situation as Daynamez was not the one booking the cargo.
25. The Amended Formal Complaint is nothing but false conclusionary allegations with no substance.
26. Although the Court stated that a shipping contract's venue clause does not supplant the Shipping Act, this is a civil dispute between two agents and not the subject of violations of the Shipping Act. SIC could try to pursue this matter in another venue, although it is Daynamez's position that the only breach of contract was by SIC. There is a business dispute about the contract, not about violations of the Shipping Act.

Wherefor Daynamez would ask that the Complaint be dismissed with prejudice as the Complaint is in the wrong jurisdiction and that it be awarded its attorney fees and court costs and any other relief allowable by law.

Dated:
December 29th, 2025

CERTIFICATE OF SERVICE

I certify that on the 29th day of December 2025, a true and correct copy of the foregoing Notice of Service was hereby served by electronic mail upon the party of record for the Complainant, in accordance with 46 CFR Part 502 and the Commission's Order of May 12, 2020.

Served to:
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Dated:
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Respectfully submitted, Daniel W. Raab,

P.A.

s/Daniel W. Raab

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